Brazoria County District Court

Cause No. 2024-CV-0012

Paul Long, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-13-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that would otherwise rest with Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence in question. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and Plaintfif is barred from recovery if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by a sudden emergency or by the acts or omissions of persons other than Defendant, including responsible third parties, and Defendant reserves the right to designate such persons under Section 33.004.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice or by failing to seek timely and appropriate treatment, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.